

BEFORE THE
FEDERAL MARITIME COMMISSION

YSN IMPORTS INC. d/b/a/ Flame King,

Complainant,

Docket No. 21-02

v.

FEIGE "PEGGY" OBERLANDER, U SHIPPERS
GROUP INC., and U SHIPPERS GROUP
MANAGEMENT CO., INC.

Respondents.

**OPPOSITION TO RESPONDENTS' MOTION FOR LEAVE TO FILE ANSWER OUT
OF TIME**

Complainant YSN Imports Inc. d/b/a Flame King, by and through their undersigned counsel, respectfully submit this opposition to Respondents' Motion For Leave to File Answer Out of Time filed by Feige "Peggy" Oberlander, U Shippers Group Inc., and U Shippers Group Management Co. Inc. (collectively "Respondents"). For the reasons described below, the motion should be denied.

By order dated July 7, 2021, Respondents' motion to dismiss the complaint in this action was denied. The Chief Administrative Law Judge concluded the order as follows: "Respondents shall file their response to the complaint by July 22, 2021 and the parties shall file a joint status report with proposed schedule by August 6, 2021, as required by the Initial Order." Respondents neglected to file its answer, and did not contact counsel to seek an extension or approach the Chief Administrative Law Judge for an extension of the deadline to answer the complaint. Respondents also mailed empty envelopes to Complainant's counsel on the due date for the

response, making it clear that they were fully aware the response was due, but did not file the response, timely move for an extension, or confer with opposing counsel about an extension as required by the Commissions Rule.

By failing to timely file an answer on July 22, Respondents have waived their right to file an answer. The Commission's Rules of Practice and Procedure at 46 C.F.R. §502.62 (6) provides in pertinent part as follows:

(6) Effect of failure to file answer. (i) Failure of a party to file an answer to a complaint, counterclaim, crossclaim, or third-party complaint within the time provided will be deemed to constitute a waiver of that party's right to appear and contest the allegations of the complaint, counterclaim, crossclaim, or third-party complaint to which it has not filed an answer and to authorize the presiding officer to enter an initial decision on default as provide for in 46 CFR 502.65. Well pleaded factual allegations in the complaint not answered or addressed will be deemed to be admitted.

(ii) A party may make a motion for initial decision on default. [Rule 62.]

By missing the deadline in the July 7 Order, Respondents have waived the right to file an answer and should be deemed to have admitted the well pleaded factual allegations in the complaint.

Respondents further did not comply with 46 C.F.R. §502.71(a) the “duty to confer” rule for filing a non-dispositive motion which reads as follows:

(a) Duty to confer. Before filing a non-dispositive motion as defined in §502.69(g) of this subpart, the parties must attempt to discuss the anticipated motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The moving party must state within the body of the motion what attempt was made or that the discussion occurred and whether the motion is opposed.

Respondents have sought and have been granted extensions in this matter, and are aware of this procedural requirement. As Respondents have ignored the deadline to file the answer in the July 7 Order issued by the Chief Administrative Law Judge, and have further disregarded the Commission's regulations in filing the Motion for Leave to File Answer Out of Time, the missed deadline to answer the complaint is not “excusable neglect” as required by the rule for late filing and Respondent's motion should be denied.

If the Chief Administrative Law Judge grants Respondent's motion, and permits the late filing of the answer to the complaint, Complainants respectfully request an extension of the time to file a joint status report with proposed schedule of twenty (20) days from August 6, 2021 to August 26, 2021.

Dated: July 30, 2021

Respectfully submitted,

By: /s/ J. Michael Cavanaugh

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 30th day of July, 2021, a true and correct copy of the foregoing Opposition to Respondents' Motion for Leave to File Answer Out of Time was served via email on:

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/s/ J. Michael Cavanaugh
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